

Appendix H: Sample RFI

The sample RFI is intended to be used as a guide and should be reviewed and modified by agency counsel to meet the agency's needs, policies, and requirements. In addition, agency counsel should advise on proper format and publication of the RFI.

A. Background

The goal of this RFI is to solicit information from industry to assist the **Department of Energy, Oak Ridge National Laboratory in Oak Ridge, Tennessee** in structuring a future solicitation for a proposed **5 MW** on-site solar array that will be implemented using an energy savings performance contract energy sales agreement (ESPC ESA). An ESPC ESA is a project structure that allows federal agencies to utilize the ESPC long-term multiyear contracting authority to implement cost-saving renewable energy conservation measures (ECMs) on federal buildings/land that support domestic energy production and leverage private sector investment. Under an ESPC ESA, just as with a traditional ESPC, an energy service company (ESCO) incurs the costs of implementing an ECM (in this case the ECM is an onsite renewable energy generation system) and is repaid by the federal agency from a share of the resulting energy savings.

The ESPC ESA must meet all ESPC statutory and regulatory requirements (See 42 U.S.C. § 8287 et seq. and 10 C.F.R. § 436.30 et seq.), including the requirement that the agency pay for the cost of the ESPC ESA from energy savings generated each year over the life of the contract. The ESCO must be on the U.S. Department of Energy's (DOE) Qualified List of Energy Service Companies (DOE Qualified List) available at [DOE Qualified List](#) or an agency's list of qualified contractors (consistent with 42 U.S.C. § 8287(b)(2)(A)-(B) requirements) prior to contract award.

In order for the ESPC ESA contract to be scored annually, it must be consistent with the requirements under the OMB "Addendum to OMB Memorandum M-98-13 on Federal Use of Energy Savings Performance Contracts (ESPCs) and Utility Energy Service Contracts (UESCs)" (M-12-21, dated September 28, 2012, available at [OMB Memo M-12-21](#)), including the requirement that the federal government retain title to the onsite renewable energy generation system at the conclusion of the contract.

The intent is for the ESPC ESA to meet the safe harbor requirements of IRS Revenue Procedure 2017-19 (see [IRS Rev. Proc. 2017-19](#)), including the requirements that the ESPC ESA contract length be 20 years or less, that the ESCO will own, operate, and maintain the renewable energy generation system at all times, and title transfer of the renewable energy

generation asset will be at fair market value as appraised by a third party at the time of the sale.

The ESCO will transfer a portion of the payments it receives from **Oak Ridge National Laboratory (ORNL)** each year into a reserve account held by the ESCO. These funds will be allocated to the future FMV purchase of the renewable energy generation asset. Any reserve account funds in excess of the renewable energy generation FMV purchase price can be applied by the ESCO to offset the final ESPC payment(s).

The **Department of Energy** is considering a solar project at the **Oak Ridge National Laboratory** for the following reasons:

1. To reduce costs
2. To protect against volatile energy prices
3. Local economic benefits
4. Energy resiliency
5. Education
6. To increase renewable use

Oak Ridge National Laboratory is currently considering other non-solar ECMs under this RFI.

B. Description

The proposed solar project may include a combination of ground-mounted and carport PV systems. Below are details:

- **Roof PV Systems:** None proposed at this time.
- **Ground-mounted Systems:**
 - Slope: Gentle, less than 5°
 - Vegetation: Light grass, minimal clearing required
 - Tree Removal: Minor trimming only
 - Landscaping: Minimal, native species preferred
 - Fencing: Required, 6 ft chain-link
 - Road: Gravel access road present
- **Carport Systems:**
 - Parking lot: 100,000 sq ft adjacent to Building 2023

- Coverage: 75% of southern half
- Drainage: Stormwater runoff connected to existing systems
- Lighting: LED lighting underneath carports required
- **Electrical System:**
 - Existing 13.8 kV distribution system
 - Interconnection planned at Substation B near Building 2050

Additional information and considerations:

1. The solar project shall include all necessary PV modules, inverters, electrical components, and system controls. The ESCO will be responsible for full O&M, including any necessary replacements, for the life of the 20-year contract.
2. An **Environmental Assessment (EA)** is required under NEPA. This assessment will be conducted by **the Department of Energy's NEPA Office** by **March 2026**, prior to the issuance of the RFP. Additional reviews will address **cultural and archeological resources** in accordance with the **National Historic Preservation Act**.
3. The **Buy American Act/Trade Agreement Act** will apply.
4. The **Davis-Bacon Act** will apply for installation labor; **Service Contract Act** will apply for O&M labor.
5. All personnel must comply with **OSHA safety requirements**. Site-specific safety training and badging are mandatory prior to any on-site activities.

C. Electricity Consumption and Rate Information

The site's annual electricity consumption and rate info:

- **Annual consumption:** 39,000,000 kWh
- **Peak demand:** 6,200 kW
- **Average blended rate:** \$0.072/kWh
- **Monthly peak demand range:** 4,800 – 6,700 kW
- **Rate structure:** TOU with on-peak demand charges of \$12.50/kW

Interval and historical data for the last 24 months is available upon request.

D. Questions

The **Department of Energy** requests the following information:

1. Please provide a one-page summary of your company's qualifications and a list of similar solar projects (especially at federal facilities or in Tennessee). Include client name, location, MW installed, and contract type.
 2. Have you worked with federal agencies before? If so, share examples and lessons learned, especially regarding regulatory challenges or interconnection issues.
 3. Provide a **non-binding estimate** of the ESPC ESA price (¢/kWh) and escalation rate. The forecasted escalation rate is estimated at **2.3%**, based on the **Energy Escalation Rate Calculator (EERC)**.
 4. What is the **estimated FMV** of the PV system at the end of the 20-year term? Describe the valuation methodology.
 5. What tax credits or incentives can be applied to reduce cost, considering federal property constraints?
 6. Should **SRECs** be sold to improve economics? If yes, what are the trends in the **Tennessee** SREC market? What is the current average price, and typical contract duration?
 7. Are there other technical or financial recommendations you wish to provide?
-

E. Responses

Responses are limited to **20 pages**, 1-inch margins, 11 pt Arial font.

Please include your company name, address, contact person, phone, and email.

Submission does **not obligate** respondents to participate in a future RFP, and **does not commit** the DOE to any contract.

Responses must be submitted by **August 15, 2025**, to:

 **solar-RFI@doe.gov**

Subject line: "DOE-ORNL Solar ESPC ESA – RFI Response"

Confidential information must be clearly marked in accordance with the guidelines listed above. Unmarked proprietary content may be disclosed publicly.